

THE TRIAL
of
SACCO and VANZETTI

A Summary of the Outstanding
Testimony

by
LOUIS BERNHEIMER

“The Truth Shall Make You Free”

THE TRIAL
of
SACCO and VANZETTI

A Summary of the Outstanding
Testimony

by
LOUIS BERNHEIMER

“The Truth Shall Make You Free”

The Project Gutenberg eBook of The trial of Sacco and Vanzetti

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The trial of Sacco and Vanzetti

A summary of the outstanding testimony

Author: Louis Bernheimer

Contributor: Felix Frankfurter

Release date: July 12, 2023 [eBook #71177]

Language: English

Original publication: United States: not listed, 1927

Other information and formats: www.gutenberg.org/ebooks/71177

Credits: Bob Taylor, Steve Mattern and the Online Distributed Proofreading Team at <https://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE TRIAL OF
SACCO AND VANZETTI ***

THE TRIAL
of
SACCO and
VANZETTI

A Summary of the Outstanding
Testimony

by
LOUIS BERNHEIMER

***“The Truth Shall Make You
Free”***

FOREWORD

Few murder cases have attracted the anxious attention of the entire civilized world over so long a period of time as the case of Nicola Sacco and Bartolomeo Vanzetti at Dedham, Norfolk County, Massachusetts. These men, Italian radicals and aliens, were arrested during the "Red Raids" carried out by the United States Department of Justice in 1920, convicted of murder in connection with a payroll hold-up, and on April 9th, 1927, seven years after their arrest, sentenced to die in the electric chair.

Agitation for the release of Sacco and Vanzetti has taken place in every corner of the earth. Many celebrated men at home and abroad have declared them to be innocent, their defense has fought a heroic fight, while the machinery of the law has steadily brought them closer to death day by day, until there now stands between them and execution in the week of July 10th of this year, one man, Governor Alvin T. Fuller of Massachusetts.

Widespread ignorance on the part of the general public of the actual testimony on which the conviction of Sacco and Vanzetti was secured has made it advisable that a brief summary of the testimony of outstanding importance at the trial should be made.

The summary here offered, is based on the book by Professor Felix Frankfurter, of the Harvard Law School, "The Case of Sacco and Vanzetti," itself based on the written record of the trial, published by Little, Brown, and Company in association with the Atlantic Monthly Company, Boston, Mass., and available at all bookstores.

L. B.

New York,
May 15, 1927.

S EVEN years ago, on the afternoon of April 15, 1920, in South Braintree, Massachusetts, Parmenter and Berardelli, a paymaster and his guard, while carrying in two boxes the payroll of the shoe factory of Slater and Morrill, amounting to over \$15,000, from the office building to the factory of the company, a three minute walk, were fired upon and killed

by two men. As the paymaster and guard fell, an automobile carrying several men drew up. The bandits seized the boxes of money, threw them into the car, jumped in, and were off.

Charged with the murder on May 5, 1920, three weeks after the crime, Nicola Sacco and Bartolomeo Vanzetti, the former an industrious workman with a family, the latter a fish peddler, both extreme radicals, were put on trial on May 31, 1921, at Dedham, Norfolk County, Massachusetts. The presiding Judge was Webster Thayer, of Worcester. Chief counsel for the Italians was Fred H. Moore, a Westerner and a radical, later, Jeremiah and Thomas F. McAnarney, and finally William G. Thompson, a former President of the Boston Bar Association.

Three main lines of attack were followed by the Commonwealth in its effort to secure a conviction, as follows:

- I. Identification of the defendants as the murderers by means of eyewitnesses and other witnesses.
- II. Identification of the defendants as the murderers by means of “consciousness of guilt.”
- III. Identification of the defendants as the murderers by means of testimony centering on the “mortal bullet.”

The trial lasted seven weeks, and Sacco and Vanzetti were found guilty of murder in the first degree.

Were Sacco and Vanzetti two of the assailants of Parmenter and Berardelli, or were they not?

That is the issue now, as it was then.

Let us examine the testimony.

**I.
Identification
through
eyewitnesses and
other witnesses**

On the issue of the identification of the defendants as the murderers through eyewitnesses and other witnesses, ninety-five witnesses testified for the defense and fifty-nine for the Commonwealth. Of the fifty-nine, five, Mary E. Splaine, Frances Devlin, Lola Andrews, Louis Pelzer, and Carlos E. Goodridge, definitely identified Sacco as in the automobile or at the spot.

Their testimony:

AS TO SACCO:

1. Splaine, about *three weeks*^[1] after the arrest, could not identify Sacco. *A year later*^[1] she testified that he had been in the murder car, describing sixteen details of his personal appearance!

Dr. Morton Prince, professor of abnormal and dynamic psychology at Harvard University, comments on this testimony: “I do not hesitate to say that the star witness for the government testified honestly enough, no doubt, to what was psychologically impossible. Miss Splaine testified, though she had only seen Sacco at the time of the shooting, from a distance of about sixty feet, for from one and a half to three seconds, in a motor car going at an increasing rate of speed at about fifteen to eighteen miles an hour, that she saw, and at the end of a year she remembered and described, sixteen different details of his person, even to the size of his hand, length of his hair, as being between two and two and a half inches long, and the shade of his eyebrows! Such perception and memory under such conditions can be easily proved to be psychologically impossible.”

2. Devlin, a *month*^[1] after the murders, testified: “He, (Sacco) looks very much like the man that stood up in the back seat shooting.” Q. “Do you say positively that he is the man?” A. “I don’t say positively.”^[1]

At the trial, *a year later*,^[1] she had *no*^[1] doubt, and when asked: “Have you at any time had any doubt of your identification of this man?” replied: “No.” She explained the circumstance of an identification becoming sure after a lapse of time without additional opportunity for verification, by saying: “At the time there I had in my own mind that he was the man, but on account of the immensity of the crime, and everything, I hated to say right out and out.”

Ferguson and Pierce, from a window above Splaine and Devlin, on the next floor of the same factory, had substantially the same view as the two women. They found it impossible to make any identification.

3. Pelzer, a young shoe cutter, swore that when he heard the shooting he pulled up his window and saw the man who murdered Berardelli. In the court room, in June, 1921, *a year after the crime*,^[1] he identified Sacco as that man. On cross-examination, Pelzer admitted that *immediately after the arrest*^[1] he was unable to make any identification.

Of three workmen, who were at work in the same room, two testified that instead of pulling up the window, he (Pelzer) took shelter under a bench. The third was questioned thus: Q. "Did you hear him later talk about the shooting?" A. "I think I did, but I am not sure." Q. "That day?" A. "Yes, sir." Q. "What did you hear Pelzer say?" A. "Well, I heard him say that he didn't see anybody, that's all." Q. "Is that all you recollect that you heard him say?" A. "Yes, sir."

4. Lola Andrews, a woman of doubtful repute, testified that at about 11 a. m., the morning of the murders, with a Mrs. Campbell, she saw a car standing outside the factory. She saw a "very light man" inside the car (concededly neither Sacco nor Vanzetti) and another man "bending over the hood of the car," whom she characterized as a "dark complexioned man." She went into the factory in search of a job, and at the time had no talk with either of the men. When she came out, "fifteen minutes later," the dark man "was down under the car, like he was fixing something," and she asked him the way to another factory. He told her. That was the whole conversation between them.

After Sacco's arrest, she was taken to the Dedham jail and identified Sacco as the "dark complexioned man." She again identified him at the trial.

How came she to associate the "dark complexioned man" with the murder, which took place four hours later?

Q. (By the Commonwealth) "What came to your mind when you learned of the shooting?" A. "Why the only thing I can answer that is this: When I heard of the shooting I somehow associated that to the man I saw under the car."

Four reputable witnesses completely discredited the foregoing Andrews testimony.

(a) Mrs. Campbell, an elderly woman, with Andrews throughout the episode, testified that although they saw an automobile in front of the factory, the man of whom they asked the way to another factory was *not*^[1] the man under the car, but a man in khaki clothes standing near.

(b) Harry Kurlansky, a business man of Quincy, who had known Lola Andrews seven or eight years, talked with her in February. "She says, 'They

are bothering the life out of me.’ I says, ‘What?’ She says, ‘I just come from jail.’ I says, ‘What have you done in jail?’ She says, ‘The government took me down and want me to recognize those men,’ she says, ‘and I don’t know a thing about them. Unfortunately, I have been down there to get a job, and I have seen many men that I don’t know, and I have never paid any attention to any one.’”

(c) In February, 1921, Andrews complained to the police of an assault on herself in her apartment in Quincy. To George W. Fay, a policeman who investigated and who asked her if the man who assaulted her was one of the men she saw at Braintree the day of the shooting. She said she could not tell because *she didn’t see the faces*^[1] of the Braintree men.

(d) Alfred Lebreque, a Quincy newspaper man, secretary of the Quincy Chamber of Commerce, testified to a conversation with Andrews substantially to the same effect as Fay’s.

5. Carlos E. Goodridge, (who, after the trial, was discovered to have been a fugitive from justice in another state, and to have given evidence under a false name), swore that at the time of the shooting he was in a pool room in South Braintree; heard shots; stepped to the door; saw the automobile coming toward him, and when he got to the sidewalk a man in the automobile “poked a gun” over towards him—whereupon he “went back into the pool room.”

About *seven months later*^[1] he identified Sacco as that man *for the first time*,^[1] and identified him again at the trial.

Four witnesses squarely contradicted Goodridge’s belated identification. (a) Andrew Manganaro, the employer of Goodridge, told Goodridge, after the arrest of Sacco and Vanzetti, that he (Goodridge) should go and see if he could recognize them and find out if they were the murderers.

Q. “What did they say?” A. “He said he could not do it because when he saw the gun he was so scared he run right in from where he was. He could not possibly remember the faces.” Manganaro also testified, without contradiction, that Goodridge’s reputation for veracity was bad.

(b) Magazu, who ran the pool room, testified: “I says, ‘Did you see the men?’ He says, ‘I seen the men, they pointed with the gun.’ I says, ‘How did the man look?’ He says, ‘Young man, with *light hair, light*

complexioned,^[1] and wore an army shirt.” Q. “Which man?” A. “One of the men pointing with the gun. I don’t know which.” Q. “Did he say anything further about it to you?” A. “He says, ‘This job was not pulled by any foreign people.’”

(c) Arrogni, a barber in South Braintree, testified that Goodrich told him, “But if I have got to say who the man was I can’t say.”

(d) Damato, Arrogni’s boss, swore to the same effect.

In addition, Goodridge’s testimony was tainted with self-interest. At the time he was a witness for the Commonwealth he was facing jail under indictment for larceny, to which he had pleaded guilty. The case had been “filed;” that is, no sentence has been imposed, and Goodridge had been placed on probation. Unquestionably, Goodridge’s testimony was influenced by leniency previously shown to him by the District Attorney in connection with the first charge of larceny and by fear of losing his immunity.

AS TO VANZETTI:

Two witnesses claim to have identified Vanzetti as an occupant of the murder car.

(1) Harry E. Dolbeare testified that somewhere between 10 and 12 a. m. he saw a car going past him in South Braintree, with five people in it, one of whom he identified as Vanzetti. Q. “There was nothing that attracted your attention in this case except one man leaning forward as though he was talking to another man?” A. “Yes, there was.” But Mr. Dolbeare found it impossible to explain definitely what attracted his attention to this particular man, and finally explained that it was the appearance of the whole five that attracted his attention.

(2) Le Vangie, gate-tender of the New Haven Railroad, was on duty at the South Braintree grade crossing the day of the murder. He testified that the murder car drove up to the crossing just as he was lowering the gate. A man inside forced him, at the point of a revolver, to let them through before the advancing train. He identified Vanzetti as the man driving the car. His

testimony was discredited by the testimony of McCarthy, locomotive fireman of the New Haven, who testified that three quarters of an hour after the murder, “Le Vangie said, ‘There was a shooting affair going on.’ I says, ‘Some one shot?’ I says, ‘Who?’ He says, ‘Some one—a fellow got murdered.’ I said, ‘Who did it?’ He said he didn’t know... I asked him if he knew them. He said no, he did not. I asked him if he would know them again if he saw them. He said no. He said all he could see was the gun, and he ducked.”

Moreover, Le Vangie was discredited by all the other identification witnesses on both sides, who insisted that the driver of the car was a young, small light-haired man, whereas, Vanzetti is middle-aged, dark, with a black moustache.

On the whole, the alibi for Vanzetti was overwhelming. Thirty-one eyewitnesses testified positively that none of the men that they saw in the murder was Vanzetti. Thirteen witnesses either testified directly that Vanzetti was in Plymouth selling fish on the day of the murder or furnished corroboration of such testimony.

Judge Thayer abandoned identification of Sacco and Vanzetti as the grounds on which the jury’s verdict rested, in denying a motion for a new trial. This motion was based on the discovery of a new eyewitness with better opportunity for observation than any of the other witnesses on either side, who swore that Sacco was not the man in the car. Judge Thayer ruled that this evidence “would simply mean one more piece of evidence of the same account and directed to the same end, and in my judgment, would have no effect whatever on the verdicts, for these verdicts *did not rest, in my judgment, upon the testimony of eyewitnesses, for the defendants, as it was, called more witnesses than the Commonwealth who testified that neither of the defendants were in the bandit car.*”^[1]

“The evidence that affected the defendants, was circumstantial, and was evidence that is known in law as ‘consciousness of guilt.’”

By “consciousness of guilt” Judge Thayer inferred that the conduct of Sacco and Vanzetti, after the murder, was the conduct of murderers. This inference of guilt was drawn from their behavior on the

**II.
Identification
through
“consciousness of
guilt”**

night of May 5th, before and after their arrest, and also from their possession of firearms.

What was their conduct on the night of May 5th, and how did they come to possess firearms?

It will be remembered that as the murder was being committed a car containing several other men drew up. The murderers threw the two boxes containing the money into the car, jumped in and sped away at high speed across near-by railroad tracks. Two days later this car was found abandoned in woods a distance from the scene of the crime. Leading away from this spot were tracks of a smaller car.

At the time of the Braintree hold-up the police were investigating a similar hold-up in a neighboring town, Bridgewater. In both hold-ups a gang was involved. In both they made off in a car. In both eyewitnesses believed the criminals to be Italians. In the Bridgewater hold-up, the car had left the scene *in the direction of Cochesett*.^[1] Police Chief Stewart, of Bridgewater, at the time of the Braintree hold-up, was therefore on the trail of an Italian owning or driving a car in Cochesett. He thought he had found his man in one Boda, whose car was then in a garage awaiting repairs. Stewart instructed the garage proprietor, Johnson, to telephone the police when any one came to fetch it. Pursuing his investigation, Stewart found that Boda had been living in Cochesett with a radical named Coacci.

Now, on April 16, 1920, the day after the Braintree murders, Police Chief Stewart, at the instance of the Department of Justice, then engaged in the round-up of Reds, had been to the house of this same Coacci to see why he had failed to appear at the hearing regarding his deportation. He had found Coacci packing a trunk, and apparently very anxious to get back to Italy. Coacci's trunk and his haste to depart for Italy were not connected in Stewart's mind with the Braintree affair; but when, later, the tracks of a smaller car were found near the Braintree murder car, and he surmised that this murder car was Boda's, and discovered that Boda had once been living with Coacci, he connected Coacci's packing, his eagerness to depart, his actual departure, with the Braintree murders, and assumed that the trunk contained the booty. In the light of later discoveries, Stewart jumped to the conclusion that Coacci, Boda's pal, had "skipped with the swag." As a matter of fact, the contents of the trunk, when it was intercepted by the Italian police, on arrival, revealed nothing.

In the meantime, however, Stewart continued to work on his theory, which centered around Boda: that whosoever called for Boda's car, at Johnson's garage, would be suspected of the Braintree crime. On the night of May 5th, Boda and three other Italians did in fact call, and two of them were Sacco and Vanzetti.

To explain how they came to do so, let us recall here the proceedings for the wholesale deportation of radicals under Attorney-General Palmer, in the Spring of 1920. In particular, the case of one Salsedo must be borne in mind, a radical who was held incommunicado in the New York offices of the Department of Justice, on the 14th floor of a Park Row building. Boda and his companions were friends of Salsedo. On May 4th, the day before they called at Johnson's garage, they had learned that Salsedo had been found dead on the sidewalk outside the Park Row building, to which he had been thrown or jumped from the 14th floor. Already frightened by the Red raids they bestirred themselves to "hide the literature and notify the friends against the Federal police." For this purpose an automobile was needed, and they turned to Boda.

Such were the circumstances under which the four Italians appeared on the evening of May 5th at the Johnson garage.

Mrs. Johnson telephoned the police. The car, not being available, the Italians left, Sacco and Vanzetti to board a street-car for Brockton, Boda and the fourth member, Orciani, on a motorcycle.

Sacco and Vanzetti were arrested on the street-car, Orciani was arrested the next day, and Boda was never heard of again.

Stewart at once sought to apply his theory of the commission of the two "jobs" by one gang. The theory, however, broke down. Orciani had been at work on the days of both crimes so he was let go. Sacco, in continuous employment at a shoe factory in Stoughton, had taken one day off, on April 15th. Hence, while he could not be charged with the Bridgewater crime, he was charged with the Braintree murders. Vanzetti, a fish peddler at Plymouth, and his own employer, could not give the same kind of alibi for either day, and so he was held for both crimes.

The testimony concerning "consciousness of guilt:"

(1) Sacco and Vanzetti, as we have seen, were two of the four Italians who called for Boda's car at Johnson's garage, on the evening of May 5th. Following a prearranged plan, Mrs. Johnson went to a neighbor's (Bartlett's) house to telephone the police. She testified that the two defendants followed her back to the garage. Thereafter, the men, having been advised by Mr. Johnson not to run the car without the current year's number plate, left without it.

Q. "Now, Boda came there to get his car, didn't he?" A. "Yes, sir." Q. "There were no 1920 number plates on it." A. "No." Q. "You advised him not to take the car and run it without 1920 plates, didn't you?" A. "Yes." Q. "And he accepted your view?" A. "He seemed to." Q. "He seemed to. And after some conversation, went away?" A. "Yes."

This was the whole of the testimony on the strength of which Judge Thayer put the following question to the jury:

"Did the defendants, in company with Orciani and Boda, leave the Johnson house because the automobile had no 1920 number plate on it, or because they were conscious of or becoming suspicious of what Mrs. Johnson did in the Bartlett house? If they left because they had no 1920 number plates on the automobile, then you may say there was no consciousness of guilt in consequence of the sudden departure; but if they left because they were consciously guilty^[2] of what was being done by Mrs. Johnson in the Bartlett house, then you may say that it is evidence tending to prove consciousness of guilt on their part."

(2) Following their departure from the Johnson House, Sacco and Vanzetti were arrested by policemen who boarded their street-car as it was coming into Brockton.

Three policemen testified as to their behavior after being taken into custody. The testimony of the police that Sacco and Vanzetti were about to draw pistols was emphatically denied by them.

(3) In statements made to the District Attorney and the chief of police, at the police station after their arrest, both Sacco and Vanzetti lied. By mis-statements they tried to conceal their movements on the day of their arrest, the friends they had been to see, the places they had visited. For instance, Vanzetti denied that he knew Boda.

The other evidence from which the “consciousness of guilt” was drawn Sacco and Vanzetti admitted. They acknowledged that they behaved in the way described by Mrs. Johnson, and freely stated that when questioned at the police station they told lies. What is the explanation of this conduct?

Plainly, their arrest meant to Sacco and Vanzetti arrest for radicalism, for when apprehended they were not confronted with the charge of murder. They were told they were arrested as “suspicious characters.” But why did that scare them into telling lies?

The early winter of 1919-20 saw the beginning of the infamous campaign by the Department of Justice, under Attorney General Mitchell Palmer, for the wholesale arrest and deportation of Reds. The details of these raids, their brutality and their lawlessness, are set forth authoritatively in decisions of the United States courts, condemning the misconduct of the Department of Justice.

Boston was one of the worst centers of lawlessness. One of the leading citizens of Boston, Mr. John F. Moors, himself a banker, has called attention to the fact that “the hysteria against the Reds was so great at the time when these men were convicted that even the most substantial bankers in this city were carried away to the extent of paying for full page advertisements about the Red peril.”

Now, Sacco and Vanzetti were notorious Reds. They were associates of leading radicals. They had for some time been on the list of suspects of the Department of Justice, and were especially obnoxious because they had evaded the draft. Not only were they living in an overwhelming atmosphere of apprehension, but also the terrorizing methods of the Government had a very real meaning to them. For, as mentioned above, two of their friends had been deported, and one, Salsedo had, they had learned the day before, after having been detained incommunicado by the Department of Justice for a long period of time, been thrown or jumped from a window of a building on Park Row, New York. Sacco and Vanzetti had been urged by their friends to dispose of their radical literature and thus eliminate the most damaging evidence in the deportation proceedings they feared. It was to carry out this advice that Vanzetti and his friends were trying to get Boda’s car from Johnson’s garage on May 5th. And we cannot avoid concluding that Sacco and Vanzetti’s actions after their arrest were dictated, not by fear of arrest for murder, but by fear of deportation, or worse, for radicalism.

We have seen the Commonwealth abandon its first line of attack. It now abandons its second, and finally we shall see how, depending entirely upon its third line, it succeeds, through the cooperation of Judge, District Attorney, and firearms expert, in bamboozling the jury, already eager to convict these Reds, into believing that the “mortal bullet” actually passed through Sacco’s pistol.

**III.
Identification
through the
“mortal bullet.”**

Vital to the identification of Sacco and Vanzetti as the murderers was the identification of one of the fatal bullets as a bullet coming from Sacco's pistol. The evidence excluded the possibility that five other bullets found in the dead bodies were fired either by Sacco or Vanzetti.

When Judge Thayer placed the case in the jury's hands for judgment, he charged them that the Commonwealth had introduced the testimony of two experts, Proctor and Van Amburgh, to the effect that the so-called fatal bullet *went through Sacco's pistol*.^[1] Such was neither the belief nor the testimony of Proctor, who refused to accede to this view. In the course of the preparation of the case, District Attorney Katzmann knew that such was not intended to be his testimony. These startling statements call for detailed proof.

Proctor, at the time of his testimony, was head of the State Police, and had been in the Department of Public Safety for twenty-three years. On the witness stand he was qualified at length as an expert, who had for twenty years been making examination of and experiments with bullets and revolvers, and had testified in over a hundred capital cases. His testimony was thus offered by the State as entitled to the greatest weight. If the jury could be convinced that the bullet found in Berardelli's body came out of Sacco's pistol, the State's case was invincible. On this *crucial*^[1] issue, Captain Proctor testified as follows at the trial:

Q. "Have you an opinion as to whether bullet number 3 (exhibit 18) was fired from the Colt automatic which is in evidence (Sacco's pistol)?" A. "I have." Q. "What is your opinion?" A. "My opinion is that it is *consistent with*^[1] being fired from that pistol."

At the trial, in his closing argument, the District Attorney told the jury: "*You might disregard all the identification testimony and base your verdict on the testimony of these experts.*"^[1]

In the Court's charge to the jury, Judge Thayer interpreted the evidence to mean that: "*It was his (Sacco's) pistol that fired the bullet that caused the death of Berardelli. To this effect, the Commonwealth introduced the testimony of two witnesses, Messrs. Proctor and Van Amburgh.*"^[1]

Naturally, the court's *misleading*^[1] interpretation became the jury's....

After the conviction, Proctor, in an affidavit, swore that one of the bullets “was, as I then testified and still believe, fired from a Colt automatic pistol of 32 calibre.... At no time was I able to find any evidence whatever which tended to convince me that the particular model bullet found in Berardelli’s body, which came from a Colt automatic pistol, which I think was number 3, and had some other exhibit number, came from Sacco’s pistol, and I so informed the District Attorney and his assistant before the trial.... At the trial the District Attorney didn’t ask me whether I had found any evidence that the so-called mortal bullet, which I have referred to as number 3, passed through Sacco’s pistol; nor was I asked that on cross-examination. The District Attorney desired to ask me that question, but I had repeatedly told him that if he did I should be obliged to answer in the negative. Consequently he put to me this question: Q. ‘Have you an opinion as to whether bullet number 3 was fired from the Colt automatic which is in evidence?’ to which I answered, ‘I have.’ He then proceeded: Q. ‘And what is your opinion? A. ‘My opinion is that it is consistent with being fired by that pistol.’” In the affidavit he then proceeded to state that he was still of the same opinion. “But I didn’t intend by that answer to imply that I had found any evidence that the so-called mortal bullet had passed through this particular Colt automatic pistol, and the District Attorney well knew that I did not so intend, and framed his question accordingly. *Had I been asked the direct question whether or not I had found any affirmative evidence whatever, that this so-called mortal bullet had passed through this particular Sacco’s pistol, I should have answered then, as I do now without hesitation, in the negative.*”^[1]

This affidavit of Proctor’s was made the basis of a motion for a new trial before Judge Thayer. Judge Thayer found *no warrant*^[1] in the Proctor incident for directing a new trial.

The arguments of Judge Thayer in denying the motion for a new trial cannot be set forth here because of lack of space. In them, however, he shows himself as unworthy of the responsibilities placed upon him by the Commonwealth of Massachusetts. His rigid partiality, his seeking to reduce Proctor’s qualifications and authority as an expert two years after he was offered by the Commonwealth with elaborate reliance as a most important expert, in order to minimize the importance of his affidavit, his later changing of the testimony of Proctor to read “*perfectly*”^[1] instead of “consistent with” when it suited his purposes to do so, and so on, through numerous instances, certainly violated every standard of right judicial conduct.

On appeal, the Massachusetts Supreme Judicial Court, May 2, 1926, found “no error” in any of the rulings of Judge Thayer. The guilt or innocence of the defendants was not, however, in question before the Supreme Judicial Court of Massachusetts. That court could not inquire as a matter of independent judgment, whether the facts as set forth in the printed record of the trial justified the verdict. What was reviewed was, in effect, the conduct of the trial judge, Thayer, which was found to have shown “no abuse of judicial discretion.”

But what is judicial discretion?

The present Chief Justice of Massachusetts has given an authoritative definition:

“Discretion in this connection means a sound judicial discretion, enlightened by intelligence and learning, controlled by sound principles of law, of firm courage combined with the calmness of a cool mind, free from partiality, not swayed by sympathy nor warped by prejudice nor moved by any kind of influence save alone the overwhelming passion to do that which is just.”

Since the chief purpose of the writer is to expose to the scrutiny of the public the principal evidence upon which the defendants were convicted of murder, events since the conviction have not had their proper share of attention.

With the confession of a young Portuguese, Celestino F. Madeiros, himself convicted of murder, who swore that he had been one of the hold-up men, and that Sacco and Vanzetti had not participated in the hold-up, as a starting point, the defense has built up a strong case for the identification of a gang of professional bandits in Rhode Island as the murderers of Parmenter and Berardelli.

In October, 1926, Judge Thayer, in an opinion of 25,000 words, a mass of misquotations, misrepresentations, suppressions and mutilations, denied a motion for a new trial, based on the confession of Madeiros and subsequent evidence.

A few weeks ago the Supreme Judicial Court of Massachusetts barred further appeal in the Massachusetts courts. It did not, however, itself pass on the worth of the new evidence.

On April 9th, Judge Thayer sentenced Nicola Sacco and Bartolomeo Vanzetti to die in the electric chair in the week of July 10, 1927.

Power now rests in the hands of the Hon. Alvin T. Fuller, Governor of Massachusetts, to commute their sentence to life imprisonment, or grant a pardon.

SHALL SACCO AND VANZETTI BE KILLED IN THE ELECTRIC CHAIR OR, THEIR SENTENCE COMMUTED TO IMPRISONMENT FOR LIFE, PERISH IN PRISON, ON A CONVICTION SECURED AT A MANIFESTLY UNJUST TRIAL?

NO! GOVERNOR FULLER MUST SET THEM FREE!

Write or telegraph Governor Alvin T. Fuller, State House, Boston, Mass., petitioning for their release.

Among those American men and women who have petitioned Governor Fuller for a review of the case by an impartial committee are:

Bishop Lawrence,
Dr. Harry Emerson Fosdick,
John Hays Hammond,
Roscoe Pound, Dean of the Harvard Law School;
Robert M. Hutchins, Dean of the Yale Law School;
Huger W. Jervey, Dean of the Columbia Law School;
Christian Gauss, Dean of Princeton College;
Sherwood Eddy,
Dr. Richard C. Cabot,
Bliss Perry,
Charles C. Burlingham,
Edgar Lee Masters,
Morton Prince,
Margaret Deland,
Henry S. Canby,
John Haynes Holmes,
William Lyon Phelps,
Charles P. Curtiss, Jr.,
Dr. Stephen S. Wise,
Frank W. Taussig,
Prof. E. M. Borchard,
Roland W. Boyden,
Francis B. Sayre,
Dr. Frank G. Goodnow,
John Graham Brooks,

Bishop Chauncey C. Brewster,
Fabian Franklin,
President Mary E. Woolley of Mount Holyoke College,
Alexander M. Bing,
George Gordon Battle,
James Myers, Industrial Secretary, Federated Churches of Christ.

These men and women are only a few dozen of many thousands of petitioners. The list goes on to include thirteen members of the Columbia Law School faculty, nine members of the Yale Law School faculty, six members of the Kansas Law School faculty, six members of the Missouri Law School faculty, five members of the Illinois Law School faculty, the entire faculty of the Minnesota Law school, twenty-five members of the faculty of Clark University, 123 members of the faculty of Smith College, members of the faculty and 650 students of the University of California.

Of those in Europe who have petitioned either President Coolidge or Governor Fuller are Romain Roland, Albert Einstein, Henri Barbusse, Anatole France.

FOOTNOTES:

[1] Italics mine.

[2] These are Judge Thayer's words. He must have meant "guiltily conscious."

Transcriber's Notes

- pg 16 Changed: men and women who have petitioned
to: men and women who have petitioned

*** END OF THE PROJECT GUTENBERG EBOOK THE TRIAL OF
SACCO AND VANZETTI ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.